National Employment Council for the Insurance and Pensions Industry of Zimbabwe:
Code of Conduct and Grievance and Handling Procedures), 2025

IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has in terms of section 101(9) of the Labour Act [*Chapter 28:01*], published the following Code of Conduct and Grievance Handling Procedures:—

NATIONAL EMPLOYMENT COUNCIL FOR THE INSURANCE AND PENSIONS INDUSTRY OF ZIMBABWE CODE OF CONDUCT AND GRIEVANCE HANDLING PROCEDURES

REGISTERED IN TERMS OF SECTION 101 OF THE LABOUR ACT [*Chapter 28:01*]

Preamble

1. (1) This Code replaces an earlier code issued by the National Employment Council for the Insurance and Pensions Industry of Zimbabwe Statutory Instrument 52 of 2014 and is drafted in terms of the Labour Act [*Chapter 28:01*] herein referred to as the Act.

(2) This Code is based on best employment practices. It aims to assist employers and employees and their representatives by providing guidance on how to deal with disciplinary and grievance issues in employment. These are a set of rules and procedures designed to promote orderly conduct at the workplace. It should be interpreted as a set of rules for promoting discipline, industrial harmony, communication, efficiency, productivity at the workplace and for providing a fair, orderly and timely settlement of disputes as and when they arise.

Title

2. This Employment Code of Conduct shall be cited as The National Employment Council for the Insurance and Pensions Industry of Zimbabwe Code of Conduct and Grievance Handling Procedures (herein referred to as the "Code").

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Interpretation

3. In this Code, unless inconsistent with the context—

"Act" means the Labour Act [*Chapter 28:01*] as amended from time to time;

"Appeals Authority'' means a labour officer or designated agent or Labour Court;

"collective job action" means an industrial action calculated to persuade or cause a party to an employment relationship to accede to a demand related to employment and includes a strike, boycott, lock-out, sit-in or sit-out, or other such concerted action;

"complainant" means an aggrieved party;

"day" refers to working days and it excludes Sundays and a public holidays;

"designated agent" means a person appointed in terms of section 63 of the Act;

"disciplinary action" means an action taken by the employer in terms of this Code to correct or punish unacceptable conduct or behaviour of an employee for contravention of this Code;

"disciplinary officer" means a person appointed by the employer at the work place or establishment to deal with or to preside over and decide over disciplinary cases;

"disciplinary committee" means a committee set up at a work place to preside over and decide over disciplinary cases and consists of two representatives from management and two representatives from the Workers Committee or Worker/ Employee representatives, a chairperson and a secretary, the secretary whose responsibility shall be to record the proceedings only. Where there is no Workers Committee in the establishment the accused employee shall nominate the two employees' representatives to sit on the Disciplinary Committee;

"dispute" means dispute as defined in the Act;

"employee" means an employee as defined under the Act;

"employer" means an employer as defined under the Act;

"Employers Association" "means Insurance Employers Association of Zimbabwe or any other employer's association registered to represent employers in the insurance and pensions industry which is a member of Council;

"establishment" means a—

(a) business;
(b) company; or
(c) organisation,

main business is insurance and or pensions administration;

"grievance" means any complaint or dissatisfaction by an employee or employees about a particular condition or about general conditions of employment including any particular behaviour on the part of management or fellow employees;

"head" means the Managing Director, Chief Executive Officer, Chief Operating Officer or General Manager of an organisation or the highest office bearer of the organisation whatever the description is called;

"human resources" means the office that is responsible for administering and managing the company's human resources, personnel and industrial relations;

"immediate supervisor" means any employer next in seniority and to whom the subordinate employee directly reports to;

"Labour Court" means a Court established in terms of the Act;

"labour officer" "as defined in the Act;

"managerial employee" as defined in the Act;

"misconduct" means any act or behaviour or conduct by an employee in contravention of this code of conduct;

"National Employment Council" means the National Employment Council for the Insurance and Pensions Industry of Zimbabwe (NECIPI);

"offence" means any offence specified in the first schedule of offences set out in this code of conduct;

"penalty" means corrective action or disciplinary action or punishment to be administered on an employee arising from the offence committed;

"trade union" means the Insurance Employees Union of Zimbabwe herein referred to as ZIEU or any other trade union registered to represent the interests of employees in the insurance and pensions industry which is a member of the National Employment Council;

"workers committee" means a committee elected or appointed by the employees within an establishment to facilitate communication, collaboration and participation between management and employees and serves as a platform for dialogue and consultation on matters affecting the workplace;

"works council" means a body composed of an equal number of representatives of the employer and employee representatives drawn from members of the Workers Committee and a Chairperson;

"work place" means the employee's work station or wherever an employee is assigned to perform the employer's duties whether physical or virtual;

"wherever the words "he or she" appears in this code, it shall apply equally to both genders."

Purpose of the code

4. (1) The purpose of this code is to, among other things—

(a) provide employers with the framework and guidelines to deal with disciplinary and grievance matters;

(b) provide employees with the framework and guidelines to seek redress of their grievances;

(c) encourage the existence of a fair and consistent treatment of employees by employers;

(d) provide a system that promptly deals with employer-employee problems;

(e) resolve employer-employee problems at the lowest level;

(f) achieve industrial harmony; and

(g) encourage improvement in industrial conduct and performance.

Application and scope of the Code

5. This Code shall apply to all employees on permanent, contract, seasonal, probation, secondment and casual basis in grades contained in the First Schedule of the Insurance and Pensions Industry of Zimbabwe Collective Bargaining Agreement (CBA) S.I. 146 of 2016 as may be amended from time to time.

Duration

6. This Employment Code of Conduct shall remain in force for five years or unless modified, revised, amended or repealed by the National Employment Council for the Insurance and Pensions Industry of Zimbabwe and registered in terms of the Act.

Objectives of the Code

7. (1) The objectives of this Code shall among other issues include the following—

(a) to promote a framework for careful investigation of offences before corrective or disciplinary action can be administered;

(b) to ensure consistent, prompt, fair and just administration of discipline and grievances;

(c) to provide both employers and employees with a mutually acceptable code of conduct which furthers the interests of both parties;

(d) to ensure equating an offence to the resultant corrective action allowing for mitigation and aggravating factors;

(e) to ensure that the principles of natural justice are adhered to;

(f) to promote, advance social justice and democracy at the workplace and ensuring just, effective and expeditious resolution of disputes, unfair labour practices and grievances;

(g) to provide guidelines on procedural and substantive fairness and justice in handling disciplinary matters at the workplace;

(h) to provide employees with a framework and guidelines to seek redress of their grievances at the lowest level and in a prompt manner; or

(i) to counsel and correct unacceptable behaviour.

Basic principles of the Code

8. (1) This Code is based on the following basic principles—

(a) to establish the facts to the effect that, no disciplinary action and grievance resolution will be taken until the matter has been fully investigated;

(b) to deal consistently and fairly with disciplinary and grievance issues;

(c) to comply with the principles of natural justice that is at every stage the employee should be advised of the nature of the complaint, be allowed to state his or her case, and be represented by a person of his/her choice and the employer should be given enough opportunity to lay down his or her case against an employee;

(d) any party has a right to appeal to an appropriate level against any decision made or taken against it in terms of the code;

(e) an employee shall have the right to be represented at a disciplinary or grievance hearing by a fellow employee, Workers Committee representatives, Trade Union official, a person of his/her choice or a legal practitioner at the employee's expense;

(f) to comply with the provisions of the Code and the Act in dealing with all issues;

(g) to promote sound industrial relations through mutual consultation, trust and cooperation between employers and employees;

(h) that any accused employee is innocent until proven guilty in terms of this Code;

(i) that there is a need for the employer to take all actions to minimise the commission of offences by his or her employees; and

(j) that impartiality should be observed.

Duties and rights of parties

Rights and Duties of employees and employees' organizations

9. (1) Employees and employee's organisation shall have the following rights and duties in terms of this Code—

(a) to work with employers in establishing industrial relations principles subject to the provisions of labour regulations;

(b) to know the standards of conduct and performance expected of them by their employers;

(c) to ensure that they comply with all laws, Collective Bargaining Agreements and other applicable instruments;

(d) to ensure that they understand the nature and extent of their legal rights and duties in terms of the Act, Code and applicable statutes;

(e) to familiarise themselves with the provisions of this Code;

(f) to act in good faith with employers;

(g) to inform employers of their grievances;

(h) to receive just, open and consistent treatment from employers;

(i) to appeal against any disciplinary action taken against them by employers;

(j) to appeal against any determination made on their grievances;

(k) to be represented, at own arrangement by a fellow employee of own choice, Workers Committee member, registered Trade Union official, a person of own choice or a legal practitioner;

(l) to call and cross examine witnesses;

(m) to address in mitigation before a penalty is imposed;

(n) to be informed of the reasons for a decision;

(o) through employee representatives, to participate in amending this Code;

(p) to comply with the various employment rules and procedures; and

(q) carry out their contractual duties and responsibilities and follow all reasonable, lawful instructions given to them.

Rights and duties of employers and employers' organisation

9. (2) Employers and employers' organisations shall have the following rights and duties in terms of this Code—

(a) maintain fair, just and consistent discipline;

(b) ensure that all employees are aware of the standards of acceptable behaviour expected of them at the workplace;

(c) to develop, jointly with worker representatives, industrial relations principles in terms of this Code and relevant regulations:

(d) to comply with all laws, Collective Bargaining Agreements and other applicable instruments;

(e) to ensure that all employees are familiar with the provisions of this Code and other instruments governing employment;

(f) to advise, counsel, reprimand and discipline employees in terms of this Code;

(g) set standards of conduct and performance for employees;

(h) maintaining and exercising discipline in accordance with the provisions of this Code and any other relevant enactment;

(i) promptly and fully resolving employees' grievances;

(j) ensure that employees are provided with an enabling working environment;

(k) through employer representative to participate in amending this Code;

(l) to advise or take the appropriate action or counsel and correct where the employer considers that an employee's behaviour or performance is unacceptable or unsatisfactory;

(m) to call witnesses to testify on their behalf and cross-examine witnesses against them; and

(n) to ensure that employees have received the necessary training on the provisions of this Code.

Establishment of disciplinary bodies or institutions

10. (1) For the purposes of administering this Code in the industry, there shall be the following bodies or institutions—

(a) Disciplinary Committee;

(b) Disciplinary Officer;

(c) Works Council;

(d) designated agent;

(e) human resources.

The functions of the disciplinary committee/ disciplinary officer

11. (1) The Disciplinary Committee or Disciplinary Officer shall exercise the following functions—

(a) hear and determine disciplinary cases in terms of this Code;

(b) ensure the observance of time limits in hearing and determining cases;

(c) ensure that parties have been accorded enough opportunity to state their cases adequately;

(d) ensure that justice is done accordingly and that all parties are represented as they wish;

(e) ensure that disciplinary cases are disposed in an impartial manner;

(f) ensure that the hearing process is done in a systematic and orderly manner;

(g) record and keep a record of the proceedings.

The functions of the Works Council

12. For the purpose of this code, the Works Council shall hear and resolve employees' group grievances in terms of this Code.

The functions of the Designated Agent

13. (1) The Designated Agent shall exercise the following functions—

(a) advise employers and employees on the general application of this Code;

(b) receive and disposing of appeal cases.

The functions of the Human Resources

14. (1) The Human Resources shall exercise the following functions and responsibilities—

(a) ensure compliance with the provisions of this Code and any other relevant labour legislation by all parties concerned;

(b) ensure procedural fairness and consistency in all cases;

(c) facilitate communication between all parties concerned; and

(d) ensure that all parties are heard fairly before the Disciplinary Committee.

Disciplinary hearing procedures

Counselling

15. (1) When the offence warrants counselling the supervisor or manager shall—

(a) convene an informal meeting with the employee;

(b) outline the case against the employee and why he or she is of the opinion that an offence has been committed;

(c) give the employee the opportunity to answer the allegations made against him and to justify his actions, if any.

(2) The supervisor or manager shall then consider all the evidence, including representations made by the employee, and make a decision regarding whether the employee should receive counselling or not.

(3) In the event that the supervisor or manager decides that the employee should receive counselling, he shall sign a note to that effect giving his reasons, which shall be lodged in the employee's personal file.

(4) The employee shall acknowledge that he or she has received the counselling services from the supervisor or manager.

First written warning, final written warning and dismissal

16. (1) Where an employer has good cause to believe that an employee has committed an offence warranting a first written warning or a final written warning or a dismissal in terms of this Code the employer may—

(a) suspend such employee with or without pay and benefits and shall forthwith serve the employee with a letter of suspension detailing the reasons and grounds of the suspension;

(b) upon serving the employee with the suspension letter as detailed above, shall cause within fourteen (14) days, investigate the matter fully, conduct a hearing and make an appropriate determination regarding the alleged misconduct of the employee and, may, depending on the circumstances of the case—

(i) serve a notice, in writing to the employee concerned, lifting the suspension and reinstating such employee on full pay and benefits if the grounds of suspension are not proved; and

(ii) a determination or order served in terms of subsection 5.2(b)(ii) shall provide for back pay and benefits from the time of the suspension.

(2) At the hearing, an employee shall have the right to—

(a) at least three (3) working days' notice of the proceedings in "**Form NECIPI-C1**" against him or her and the charge he or she is facing;

(b) appear in person or virtually before the company or organisation's Disciplinary Committee or Disciplinary Officer as the case may be and be represented by either a fellow employee, Workers Committee member, Trade Union Official or Officer or a Legal Practitioner;

(c) call witnesses and have them cross-examined;

(d) be informed of the reasons for the verdict and penalty.

(e) a document from any criminal court proving that the accused employee was convicted of the offence or similar offence that he is charged with in the disciplinary hearing shall be admissible on its production by any person as proof that the person concerned did all the acts or omissions necessary to constitute that offence; or

(f) address in mitigation before the ultimate penalty is imposed.

(5) After the hearing has been concluded, the Disciplinary Committee or the Disciplinary Officer shall consider all the evidence including all others factors such as mitigation and aggravating factors and make an appropriate decision. The "**Form NECIPI – C5"** shall be used.

(6) lf an employee has committed an offence which warrants a first written warning and the employee concerned is agreeable by signing "**Form NECIPI- C5"** that he or she has committed the offence and agreeable to the issuance of the first written warning, the first written warning may be issued without a hearing.

(7) As far as is possible, similar offences committed in similar circumstances should be treated equitably through the imposition of similar penalties allowing for mitigation and aggravating circumstances.

(8) In the event of the accused employee requiring witnesses from the company and or company documents pertinent to the hearing he shall so request in writing to the head of relevant department at least two days before the hearing giving the specific names of the required witnesses and the specific details of the required documents.

Disciplinary hearing process

17. (1) For the purpose of this Code, the disciplinary process commences at the point when the alleged offender receives the formal letter of the alleged breach of this Code or suspension letter from the immediate superior.

(2) The following guiding procedures shall be adhered to at the hearing and the Disciplinary Committee Chairperson or Disciplinary Officer—

(a) if for any reason an accused employee is unable to attend the hearing, shall inform the Disciplinary Committee or Disciplinary Officer in writing at least two working days before the hearing date in which event the hearing may be postponed to another suitable date not more than three working days from the initial hearing date;

(b) may cause proceedings to be held in the absence of the accused employee if the accused employee, without reasonable excuse wilfully fails to attend the hearing and such proceedings shall be placed on record;

(c) shall introduce everybody and must explain the reasons for the disciplinary hearing;

(d) shall ensure that the Disciplinary Committee is properly constituted;

(e) where a disciplinary Committee or Disciplinary Officer is unable to complete a hearing on the first day of the proceedings shall ensure that parties reconvene within the next three working days to finalise the hearing;

(f) shall read the employee's rights and ensure that they are understood;

(g) shall read, clarify and state the charge against the employee and ask the complainant to confirm the statement;

(h) shall read the accused employee's response to the charges and ask him or her to confirm the statement and whether he pleads guilty to the charges;

(i) shall invite the complainant to state his case against the accused employee;

(j) shall permit the accused employee to cross-examine the complainant;

(k) shall also cross-examine the complainant at this stage;

(l) shall allow the accused employee to give his side and version of the case;

(m) shall allow the complainant to cross-examine the accused;

(n) shall cross examine the accused employee;

(o) shall give the accused person and the complainant an opportunity to call or cause witnesses to attend the hearing if they so wish and these witnesses must be called one by one to give evidence after which the accused employee or the complainant and the Disciplinary Committee/Officer may cross examine the witnesses;

(p) shall ask the complainant and the accused employee and their representatives to leave the room to allow the Disciplinary Committee/Officer to consider all the evidence before giving a verdict;

(q) shall in the event of a walk out from the hearing by the accused employee or its representative the Disciplinary Committee or Officer, proceed to hear evidence as if the employee or its representatives were present and make a determination;

(2) The accused employee is free to exercise his/her right to silence. However, it must be placed on record that, adverse inferences may legitimately be drawn to the possible detriment of the employee in the event of the employee opting to exercise his/her right to silence.

(3) The Disciplinary Committee Chairperson or a Disciplinary Officer shall arrive at the verdict, highlighting whether the employee is guilty or not guilty.

(4) The verdict shall be reached by consensus or by majority secret vote and in the event of a deadlock or tie, the Chairperson of the Disciplinary Committee shall have a casting vote.

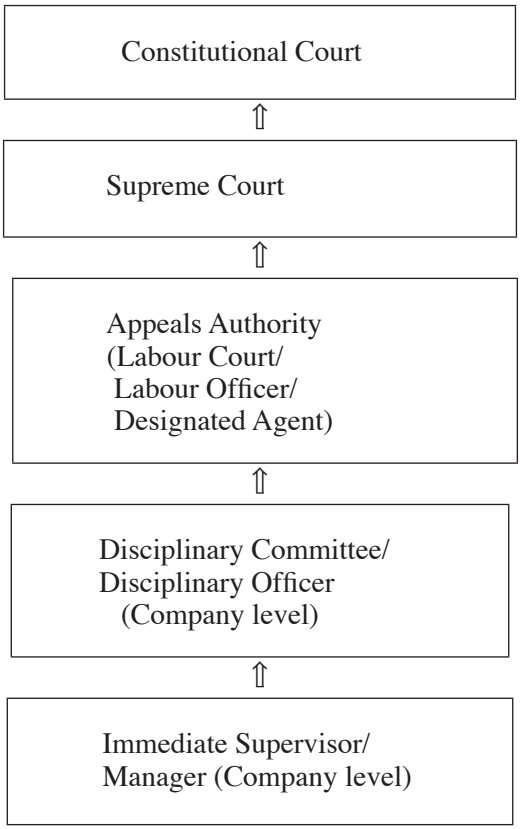
(5) If the employee is found guilty, the Disciplinary Committee or Disciplinary Officer shall invite the accused to give mitigation factors and the complainant to give aggravating factors before the ultimate penalty.

(6) Once the penalty has been pronounced the accused employee and the complainant shall be notified of the determination in writing,

(7) The right of appeal and time frames shall be communicated to the accused employee.

The hearing levels

18.—



Appeal procedure

19. (1) An employee shall have the right of appeal within the time limits stipulated below.

(2) The late noting of an appeal shall only be condoned by the appropriate Appeals Authority if good and sufficient reasons exist.

Appeal against First written warning, Final written warning and dismissal

20. (1) An employee has a right to appeal to the Appeals Authority within seven (7) working days from the day of receipt of the written determination made by either the Disciplinary Committee or the Disciplinary Officer:

Provided that at the conclusion of such proceedings and not notwithstanding anything to the contrary in this Code, at the instance of any party aggrieved by those proceedings that party may appeal to a Labour Officer or Designated Agent within 30 days of the conclusion of the proceedings.

(2) The notice of appeal shall be submitted to the Appeals Authority in "**Form NECIPI-C2**".

(3) The appellant shall state clearly his grounds of appeal in writing.

(4) It shall be the responsibility of the appellant to ensure that the following documents are lodged with the Appeals Authority—

(i) the record of disciplinary proceedings;

(ii) determination; and

(iii) any other documents that the Appellant deems relevant to the appeal.

(5) When noting an appeal to the Appeal Authority the Appellant shall complete "**Form NECIPI-C2"** hereafter referred to as the appeals form and attach all relevant documents.

Grievance

21. (1) It is acknowledged that grievances arise amongst employees and that management is responsible for attempting to resolve the grievances of employees in a spirit of harmony, understanding and co-operation.

(2) The "Form NECIPI -3" shall be used for any grievance at the first instance or step and **"Form NECIPI-4"** at any appeal level except to the Labour Court.

Individual grievances

22. (1) An employee shall have the right to have the individual grievances resolved by pursuing the following procedures:

(2) In the event that it is not possible to follow the steps as set out below because of the reporting structure of the organisation the matter will commence at step 4.

(3) In the event that the employee's grievance is against the immediate supervisor or Manager or the Head the grievance process shall commence at the next level.

Step 1: To immediate supervisor or manager

23. (1) The employee will in the first instance discuss the matter with his immediate supervisor or manager. The immediate supervisor or manager shall give a verdict concerning the grievance within 2 working days of the matter being referred to him.

Step 2: To the immediate superior of the employees Supervisor or manager

(herein referred to as the Superior)

(2) If the employee is not satisfied with the verdict of his immediate supervisor or manager, he shall have the right to refer the grievance to the superior. This shall be done in writing within two

working days of the verdict having been communicated to him. The superior shall resolve the grievance within a further two working days.

Step 3: To the Head

(3) If the employee is not satisfied with the verdict of the Superior, he or she shall have the right to refer the grievance to the Head. This shall be done in writing within two working days of the verdict having been communicated to him. The Head shall resolve the grievance within a further 3 working days.

Step 4: To the National Employment Council for the Insurance and Pensions Industry

(Herein referred to as the NEC)

(4) If the employee is not satisfied with the verdict of the Head, he shall have the right to refer the dispute to the National Employment Council for Insurance and Pensions Industry Designated Agent who shall dispose of the matter in terms of the Act.

Group grievances

24. (1) Grievances in which more than one employee are directly involved shall be resolved using the following procedures—

Step 1: To the Human Resources Manager/ Senior in that department

(Herein referred to as the Human Resources)

(2) In the first instance employees shall refer their grievances to Human Resources. The Human Resources shall resolve the grievances within 3 working days.

Step 2: To the Works Council

(3) If the employees are not satisfied with the verdict of the Human Resources, they shall have the right to refer their grievances to the Works Council and the Works Council shall resolve the grievances within three (3) working days.

Step 3: To the Head

(4) If the employees are not satisfied with the verdict of the Works Council, they shall have the right to refer their grievances to the Head. This shall be done in writing within two working days of the verdict having been communicated to them. The Head shall resolve their grievances within a further 3 working days.

Step 4: To the National Employment Council for the Insurance and Pensions Industry

(Herein referred to as the NEC)

(5) If the employees are not satisfied with the verdict of the Head, they shall have the right to refer their dispute to the NECIPI Designated Agent who shall dispose of the dispute in terms of the Act.

(6) Where a grievance is not addressed for whatever reason at any level within the prescribed time limit the grievance shall progress to the next level.

Collective job action

25. Inciting and or taking part in unlawful job action as defined in the Act shall be dealt in terms of the Act.

General notes

26. (1) Where there is no Workers Committee, the employer shall appoint any person in his or her employment as a Disciplinary Officer.

(2) The Human Resources Representative may attend the disciplinary hearing to take minutes of the proceedings and not as a member of the Committee.

(3) The Human Resources Representative shall advise the Disciplinary Committee or the Disciplinary Officer on the provisions of the Code and relevant statutes to be applied and ensure that the disciplinary process is fair, just and impartial.

(4) Disciplinary action shall be initiated as soon as possible after discovery that an employee is alleged to have committed a disciplinary offence and should be concluded within the stipulated time frames.

(5) Any penalty already in force may be taken into account in determining the penalty for a subsequent offence.

(6) Counselling is a corrective and educational measure.

(7) A grievance procedure should operate on a sound principle of examining the issue at hand and not the person.

(8) There is a need to investigate real causes of grievances and not to resort to short term measures and solutions.

(9) Impartiality should be observed.

(10) There shall be a clear channel for expressing grievances and ensure speedy resolution of such grievances.

Offences and penalties

27. A penalty to be imposed to any employee for an offence in terms of this Code shall be administered in terms of the First Schedule of this Code.

Definition of offences

28.— "absenteeism" means unauthorised absence from work or scheduled work regardless of the employee's work location whether in a physical office, remote setting or any other designated work environment and it includes failure to be present or available to perform the assigned duties during scheduled working hours without prior approval or valid reason;

"assault" means unlawful and intentional application of force or threat of force to a person which causes that person to reasonably believe that force may intentionally be applied to him;

"breach of confidentiality'' means disclosing confidential or unauthorised sharing or access of information that is

private or restricted belonging to the employer, supplier, customer or fellow employee to unauthorized persons or fellow employees;

"bribery/corruption" means giving or receiving or attempting to give or receive anything of value (money or in kind) as an inducement or reward for obtaining business or any other benefit or to induce any person to perform some corrupt act;

"conducting a transaction with a client in a rude manner or shouting at a client" means being discourteous, impolite or disrespectful to clients;

"criminal conviction" means a formal judgement made by a competent court establishing that the accused has committed a crime and has been sentenced which sentence and or conviction has a bearing on the accused's employment.

"cyber bullying and harassment" means the use of information, communication and technology to harass, threaten, embarrass, or target another person including online threats and mean, aggressive or rude texts, posts, or messages all count and posting personal information, pictures, or videos designed to hurt or embarrass a person;

"drug abuse" means unauthorised consumption, injection, taking or use of unauthorised drugs;

"embezzlement" means converting to personal use property /money, which has been received on behalf of the employer;

"extortion" means demanding money or a valuable asset or a favour or advantage for services through intimidation or threats;

"failure to fulfil the expressed or implied conditions of the contract of employment or breach of the employment

contract" means being unable to fulfil the express conditions, which are those that are clearly written in the contract of employment as read together with the job description or standard operating procedures and implied condition are, those that may not be specifically laid down in a document but which are reasonably connected to the contract of employment and which the law will nevertheless consider as forming party of the contract of employment;

"fighting physically or physical assault" means fighting involving the exchange of blows or use of damaging objects by two or more employees at the work place or outside the workplace. Physical assault involves inflicting of physical injury to another or where one actually strikes, drags or touches another in anger, vengeful or insolent manner;

"forgery and uttering" means falsifying any qualification or any signature on official documents or written information and communicates the same to another with the intention of causing actual or potential prejudice or which is potentially prejudicial to the employer, supplier or customers;

"fraud" means unlawfully making changes, intentionally or not, a representation, whether written, oral or by conduct which causes actual prejudice or which is potentially prejudicial to the employer or another person;

"gender based violence and harassment" means violence and harassment directed at persons because of their sex or gender or affecting persons of a particular sex or gender disproportionally including sexual harassment (unwelcome physical, verbal or nonverbal sexual conduct that denigrates or ridicules or is intimidating, suggestive or is physically abusive of another employee's sex including a derogatory or degrading insults which

are gender related and offensive);

"gross incompetence or inefficiency in the performance of his/her work" means performing unsatisfactory or substandard work resulting in extremely poor work output which may result in serious loss, damage or prejudice to the employer or company;

"gross negligence" means lack of proper care or attention in discharging a duty to the extent that the employer's property is exposed to risk or is damaged. Gross negligence shall include—

(a) negligent loss which means an act where an employee, through carelessness or recklessness, deliberately loses employer's property or is unable to account for it satisfactorily and;

(b) negligent damage which means an act whereby an employee through carelessness or recklessness deliberately allows the employers' property in the employee's charge to be damaged.

"hacking" is the act of identifying and then exploiting weaknesses in an ICT system or network to gain unauthorised access to personal or company data;

"insubordination" means showing defiance or disobedience by word or conduct towards the authority of a supervisor or manager or a person in authority, includes, refusal to take directives, challenging, disrespecting rudeness and vindictiveness towards authority;

"intimidation" means frightening or threatening or compelling any employee or any person to force them to take an action or not to take action;

"intoxication" means being under the influence of alcohol or other intoxicating substances;

"lack of skill which the employee expressly or impliedly held himself/herself out to possess" means lacking expertise

or skill which he or she indicated in writing or verbally that he or she possess;

"misappropriation" means applying or attempting to apply to unauthorised or unlawful or wrong use of any funds, assets, or property belonging to the employer, employees, suppliers, customers or other stakeholder;

"phishing" is a type of cyber-attack where attackers impersonate a trusted entity or person trick victims into revealing sensitive information such as log credentials, financial details or personal data;

"sabotage" means deliberate act to interfere with the normal operations of the employer by covertly or overly damage to any machinery, equipment, goods, vehicles or interrupting any suppliers of power, water, fuel, materials or services necessary to the operations or by procuring substandard plant, machinery or equipment for business activity;

"theft" means unauthorised and intentional appropriation of property belonging to the employer or other persons at the work place or on duty with the intention of permanently depriving the other of that property;

"threatening to cause physical injury to a member of staff or client" means making threats or intimidates or threatens violence by action or volition of words or conduct that leads another to apprehend fear to his person or family whether immediately or in future, or intimidates by threats or force, he or she prevents or obstruct another from performing his work or uses unlawful means to compel that other person to act or refrain from acting against his will;

"unlawful collective job action/strike" means a collective job action or strike not in compliance with the requirements of the Act;

"usury'' means being involved in administering any illegal money lending activity on employer's business or premises;

"violence and harassment" refer to a range of unacceptable behaviour or practices or threats thereof whether a single occurrence or repeated that aim at, result in or a likely to result in physical, psychological, sexual or economic harm;

"wasteful use or misuse of company property" means carelessly using company property or using company property for purposes other than for which it was intended;

"wilful and unlawful loss/damage of the company's property" means an act whereby an employee deliberately or wilfully loses or damages employer or company's property;

"wilful disobedience to a lawful order/instruction" means a deliberate refusal to obey a lawful instruction or order;

FIRST SCHEDULE

(Offences and penalties)

Penalties

29. (1) The time periods for validity of offences are as follows—

(a) first written warning for three months; and
(b) final written warning for twelve months.

(2) These offences are classified under one of the following eight categories—

(a) offences relating to sub-standard performance and breach of contract;
(b) offences relating to absenteeism;
(c) offences relating to loss or damage of property;
(d) offences relating to intoxication and drug abuse and substances;
(e) offences relating to violence, abusive language and other related offences;
(f) offences relating to disobedience or indiscipline;
(g) offences relating to dishonesty, theft, fraud and criminal conviction;
(h) offenses relating to abuse of information, computer and cybersecurity.

Section 29(1)(a) **Offences relating to sub-standard performance and breach of contract**	**First Offence**	**Second Offence**	**Third Offence**
(a) Failure to meet set and agreed deadlines	First written warning	Final written warning	Dismissal
(b) Performance of a job, duty or task without the exercise of due care and attention	First written warning	Final written warning	Dismissal
(c) Lack of skill which the employee expressly or impliedly held himself out to possess	Dismissal	–	–
(d) Failure to fulfill the expressed or implied conditions of the contract of employment or any breach of the employment contract	Dismissal	–	–
(e) Undertaking outside work or activity which is prejudicial to the company including work for an employer in competition in an area with the company	Dismissal	–	–
Section 29(1)(b) **Offences relating to absenteeism**	**First Offence**	**Second Offence**	**Third Offence**
(a) Unauthorised absence from work station during working hours without a satisfactory explanation	First written warning	Final written warning	Dismissal
(b) Unauthorised absence from work for less than five days without a satisfactory reason	First Written warning	Final written warning	Dismissal
(c) Unauthorised absence from work for five or more consecutive days without a satisfactory reason	Dismissal	–	–

(d) Reporting for work late without permission/valid reason or leaving work early without permission/valid excuse	First written warning	Final Written warning	Dismissal
(e) Extended or unauthorised breaks during working hours	First written warning	Final Written warning	Dismissal
(f) Sleeping during working hours	First written warning	Final written warning	Dismissal
Section 29(1)(c) Offences relating to loss or damage of property	**First offence**	**Second offence**	**Third offence**
(a) Driving Company vehicle without authority to drive	Final written warning	Dismissal	–
(b) Driving a company vehicle without a driving license	Dismissal	–	–
(c) Wilful and unlawful loss/ damage of the Company's property	Dismissal	–	–
(d) Gross negligent loss/ damage of the Company's property	Final written warning	Dismissal	–
(e) Wasteful use or misuse of company property	First written warning	Final written warning	Dismissal
Section 29(1)(d) Offences relating to alcohol and drug abuse	**First offence**	**Second offence**	**Third offence**
(a) Drug/substance abuse	Dismissal	–	–
(b) Drunkenness/ Intoxication	Dismissal	–	–
(c) Supplying or selling drugs	Dismissal	–	–
(d) Consuming illegal drugs	Dismissal	–	–

Section 29(1)(e) **Offences relating to violence, abusive language and related offenses**	**First offence**	**Second offence**	**Third offence**
(a) Use of abusive, offensive, insulting language	First written warning	Final written warning	Dismissal
(b) Use of abusive, offensive, insulting jokes	First written warning	Final written warning	Dismissal
(c) Threatening to cause physical injury to a member of staff or client	Final written warning	Dismissal	–
(d) Fighting physically or physical assault	Dismissal	–	–
(e) Gender based violence and Harassment	Dismissal	–	–
(f) Violence and harassment	Dismissal	–	–
(g) Conducting a transaction with a client in a rude manner or shouting at a client	Final written warning	Dismissal	–
(h) Intimidation	Dismissal	–	–
Section 29(1)(f) **Offences relating to disobedience**	**First offence**	**Second offence**	**Third offence**
(a) Wilful disobedience to a lawful order/instruction given by a person in authority	Dismissal	–	–
(b) Insubordination	Dismissal	–	–
(c) Non-compliance with established procedures or standing instructions without serious consequences	Final written warning	Dismissal	–
(d) Non-compliance with established procedures or standing rules with serious consequences	Dismissal	–	–
(e) Discourtesy in the course of duties to a superior, a client or member of the public	First Written warning	Final written warning	Dismissal

(f) Unauthorised use of company's facilities, equipment or property	Final written warning	Dismissal	–
(g) Engaging in conduct detrimental to the smooth operation of the company's business	First written warning	Final written warning	Dismissal
(h) Behaving in a manner which endangers the safety or health of others	First written warning	Final written warning	Dismissal
(i) Violating safety or security rules or measures	First written warning	Final written warning	Dismissal
(j) Violating safety or security rules or measures with serious consequences	Final written warning	Dismissal	–
(k) Eating, drinking or chewing in client service areas or at unauthorised places	First written warning	Final written warning	Dismissal
(l) Causing untidiness in service areas	First written warning	Final written warning	Dismissal
(m) Disregard for company's standards of dress, Cleanliness and personal hygiene	First written warning	Final written warning	Dismissal
(n) Refusing to permit security staff to search a bag, briefcase, vehicle or other receptacle when they have cause for wanting to do so or authority to do so	Dismissal	–	–
(o) Renewing a contract or signing a contractual agreement without the authority to do so	Dismissal	–	–
(p) Smoking in smoking prohibited areas	Final written warning	Dismissal	–
(q) Sabotage	Dismissal	–	–
(r) Putting the name of the company/employer into disrepute	Dismissal	–	–

(s) Engaging or participating in an unlawful collective job action/strike	Dismissal	–	–
(t) Aiding a misconduct	Dismissal	–	–
Section 29(1)(g) **Offences relating to dishonesty, theft, fraud and criminal conviction**	**First offence**	**Second offence**	**Third offence**
(a) Bribery and or corruption	Dismissal	–	–
(b) Receiving or attempting to receive any form of bribe as an inducement for performing any corrupt act	Dismissal	–	–
(c) Deliberately giving untrue, erroneous or misleading information or testimony whether verbally or in writing	Dismissal	–	–
(d)Falsifying or unauthorised alteration of any company document	Dismissal	–	–
(e) Unauthorised possession of property to be discarded	Dismissal	–	–
(f) Applying or attempting to apply for any unauthorised purpose, any funds assets or property belonging to the company	Dismissal	–	–
(g) Any other dishonesty towards company, fellow members of staff or members of the public	Dismissal	–	–
(i) Concealing defective work	Dismissal	–	–
(j) Giving false evidence	Dismissal	–	–
(k) Theft	Dismissal	–	–
(l) Fraud	Dismissal	–	–
(m) Extortion	Dismissal	–	–
(n) Embezzlement	Dismissal	–	–
(o) Forgery and Uttering	Dismissal	–	–

(p) Usury	Dismissal	–	–
(q) Breach of confidentiality	Dismissal	–	–
(r) Misappropriation	Dismissal	–	–
(s) Criminal conviction without an option of a fine	Dismissal	–	–
Section 29(1)(h) **Offenses related to abuse of information, computer and cyber security**	**First offence**	**Second offence**	**Third offence**
(a) Hacking	Dismissal	–	–
(b) Disclosing to an unauthorised person confidential information about the company, the company's clients or business associates	Dismissal	–	–
(c) Gaining access or attempting to gain access to information or data or communication without authority	Dismissal	–	–
(d) Use of a computer software which is not authorised or licensed for use by the company	Dismissal	–	–
(e) Intercepts or interrupts or hinders or manipulate flow of information or programme or communication or functioning of a computer system without authority	Dismissal	–	–
(f) Delete or damage or alter data or programme without authority	Dismissal	–	–
(g) Distributes or transmits pornography	Dismissal	–	–
(h) Cyber bullying and harassment	Dismissal	–	–

(i) Creating or Spreading Malware (Malicious software)	Dismissal	–	–
(j) Falsify data or records or statements	Dismissal	_	–
(k) Phishing	Dismissal	_	_

NOTICE TO ATTEND DISCIPLINARY HEARING

(To be issued at least 3 days prior to the hearing)

To be completed in duplicate. **Form NECIPI-C 1**

Name and address of Company .....

.....

From .....To .....

(Disciplinary Committee/Officer (Employee's Name)

You are required to attend a disciplinary hearing for which it is alleged that ***(Detailed charges can be attached to this form)***

The hearing will be held on ..... Time.....

Venue.....

You have the right to be represented by a fellow employee, a workers committee member, trade union official/representative, a person your choice or a Legal Practitioner at your expense if you so wish. Further you have the right to call witnesses and have them cross-examined or lead evidence.

Signed .....

(Disciplinary Committee/Officer)

You are required to acknowledge receipt by signing below and return one copy.

Signed .....Date .....

Employee's signature

Signed .....

(Human Resources Official)

NB: If you do not attend the hearing after receiving this notification at the time and place notified, or if you or your representatives walk out during the hearing the hearing may proceed without you to the possible detriment of your interests.

APPEALS FORM

To be completed in triplicate. **Form NECIPI-C2**

One copy for the Appeals Authority, one copy for the Respondent and one copy for Appellant.

To: Designated Agent/Labour Officer/Labour Court (tick the appropriate**)**

Note: This is an appeal against a determination in terms of the National Employment Council for the Insurance and Pensions Industry Code of Conduct

Full name of Appellant.....

Contact Address and Tel: .....

.....

Full Name of Respondent .....

Contact Address and Tel: .....

Appellant's Job Title .....

Grade.....

Date Engaged .....

Date of determination .....

Date of receipt of determination .....

Grounds of appeal .....

.....

.....

.....

.....

.....

.....

(Also see attached)

Dated at Harare this ..... day of ..... 20 .....

Signed .....

FOR OFFICIAL USE ONLY

GRIEVANCE FORM

To be completed in triplicate if referring to NEC

FORM NECIPI-C3

To: The_____

Note: This grievance is raised in terms of the National Employment Council for the Insurance and Pensions Industry Code of Conduct

Full name of employee raising the grievance .....
.....
Contact Address and Tel: .....
.....
Name of Employer .....
.....
Full name of Immediate Superior .....
Designation .....
Grade of employee raising grievance .....
Date Engaged .....
Summary details of Grievance .....
.....
.....
.....
.....
.....
Name of Company .....
Dated at Harare this ..... day of ..... 20 .....
Signed .....

FOR OFFICIAL USE

Resolved ..... Unresolved ..... Date .....
Findings .....
.....
Decision/Recommendation .....
Signature .....

GRIEVANCE APPEAL FORM

To be completed in triplicate if referring to NEC **FORM NECIPI-C4**

To: _____

Note: This grievance is raised in terms of the National Employment Council for the Insurance and Pensions Industry Code of Conduct

Full name of employee raising the grievance .....
.....
Contact Address and Tel: .....
.....
Name of Employer .....
.....
Full name of Immediate Superior .....
Designation .....
Grade of employee raising grievance .....
Date Engaged .....
Summary details of Grievance .....
.....
.....
.....
.....
.....
Name of Company .....
Dated at Harare this ..... day of ..... 20 .....
Signed .....

FOR OFFICIAL USE

Resolved..... Unresolved ..... Date .....

Findings.....

.....

Decision/Recommendation .....

Signature .....

NB: Any party dissatisfied with the decision of the Head may appeal to the NEC Designated Agent who dispose of the grievance in terms of the Act.

DISCIPLINARY ACTION FORM

To be completed in triplicate **FORM NECIPI- C5**

Name of Employee .....
Department/Division/Branch/Section .....
Nature of Offence.....
Date and place of occurrence .....
Name of company .....

NB: For an offence warranting a first written warning only, an employee who has admitted that he/she committed the offence charged and accepts the first written warning without the need for hearing, must sign for such an admission or agreement. (See section 15(6) of the Code).

I, the undersigned employee, admit the offence and issuance of a first written warning without a hearing.

Name of employee and job title .....
.....
Signature of employee .....Date .....

FOR OFFICIAL USE

Disciplinary penalty administered .....
.....

Name and signature of Disciplinary Officer/Committee Chairperson/Immediate Supervisor

.....
.....

Name of Workers Committee representative and signature

.....

I have advised employee of their right to appeal through the laid down procedure and timeframe.

Name and signature of Disciplinary Officer/Committee Chairperson

.....

Date .....

Declaration

The trade union and the employer's association having arrived at the agreement on the Code of Conduct and Grievance Handling Procedures set forth herein, the undersigned Officers hereby declare that the foregoing is the National Employment Council for the Insurance and Pensions Industry Code of Conduct and Grievance Handling Procedures arrived at, and affix their signatures hereto.

Signed at Harare on behalf of employees and employers on this the 23rd day of September, 2025.

P. Sanangurai,
For Insurance Employers Association of Zimbabwe (IEAZ).

M. Hunga,
For Insurance Employees Union of Zimbabwe (ZIEU).

C. T. Kwinjo,
Chairman, National Employment Council for the Insurance and Pensions Industry of Zimbabwe (NECIPI).

P. Zindova,
Secretary of Council, National Employment Council for the Insurance Industry of Zimbabwe (NECIP1).